

VCU325142 Ferrer Arellano, Luis Domingo vs. OHK Transport, LLC

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-15

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Ferrer Arellano, Luis Domingo vs. OHK Transport, LLC

Case No.: VCU325142

Date: September 15, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion for preliminary approval, as modified herein; to set the motion for final approval is set for April 13, 2027 8:30 am, Department 2.

Background

The Court previously continued this matter and ordered a supplemental declaration as to information to calculate the lodestar and as to the presently incurred costs. On September 8, 2026, counsel for Plaintiff filed supplemental declarations addressing these issues.

Attorneys' Fees and Costs

Attorneys' fees of 35% of the gross settlement fund of \$195,000 or \$68,250 and costs not to exceed \$25,000 are sought by Plaintiff's counsel. Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel Seyedfarshi indicates that the firm has spent 34.2 hours on this matter ranging from rates of \$733 to \$180 per hour. (Declaration of Seyedfarshi ¶5.) This results in a lodestar of \$20,146.90.

Further, Counsel Mirabel indicates the firm has spent 73.5 hours at \$1,000 per hour. (Declaration of Mirabel ¶5) The Court notes that the \$1,000 per hour rate is already higher than what is typically "...prevailing in the community for similar work"

and reduces the hourly rate here to \$950, resulting in a lodestar of \$69,825. (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

As such, the total combined lodestar is \$89,971.90. Therefore, the Court approves the fees as requested.

Further Counsel Seyedfarshi indicates incurred costs of \$4,772.18 and Counsel Mirabel indicates costs incurred of \$9,718.26, for a total of \$14,490.44. Therefore, the Court approves costs not to exceed \$25,000 as requested.

Therefore, Plaintiff's deductions from the gross settlement of \$195,000 are preliminarily approved as follows:

Preliminarily Approved Attorney Fees (35%):

\$68,250

Preliminarily Approved Attorney Costs (up to):

\$25,000

Preliminarily Approved Enhancement Payment to Plaintiff :

\$5,000

Preliminarily Approved Settlement Administrator Costs

\$6,250

Preliminarily Approved Total PAGA Payment

\$10,000

Preliminarily Approved Net Settlement Amount

\$80,500

Motion for final approval is set for April 13, 2027 8:30 am, Department 2.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.